The National Archives reference FO 17/674

Peking
24 June 1874

No. 123

My Lord

I have the honor to forward an Extract from the North China Herald containing some interesting particulars concerning the State of things in Formosa.

I accept this occasion the correspondence given as having passed between the Japanese

The Right Honorable
The Earl of Derby

&c &c &c

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Japanese and the Government of Tokien; to which Formosa belongs.

In the reply of the Taotai there are two points of interest; first, it quotes international law; secondly, it asserts a claim of the Chinese Government not only over Formosa as its territory, but over Lewchew as its dependency. The latter, however, will not I think now be supported by the Central Government.

Mr. Medhurst will be instructed to forward two copies of the paper quoted to the Foreign Office.

I have the honor to be,

My Lord,

With the highest respect,

Your Lordship's most obedient humble servant

Thomas Francis Wade.

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The National Archives reference FO 17/674

Peking June 24th

Mr. Wade's

No. 123

1 Enclosure

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Rec'd Sept. 7.

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The War in Formosa

27 The Queen

Sir T. Wade

Circulate

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The National Archives reference FO 17/674

...of was that the statistics would prove ... inferences he had himself drawn at the ... meeting, were right.

The motion was then put and carried.

This concluded the business before the ...ting, and Mr. CARTER begged to pro... a vote of thanks to the Chairman, ...d also to the Municipal Council for the ...rest they had taken in the meeting. ...was really not a Council's meeting, but a ...payers' meeting, but the Council had ...le it their own.

The CHAIRMAN said it had been his in...tion, in nominating a Committee, to ...e a majority of non-property owners; ...e he had discovered that he had not ...ured this result. He would therefore ...stitute Mr. Litt...'s name for Mr. ...ncis'.

The meeting then broke up.

Amusements

THE A. D. C. PERFORMANCE.

The announcement of a performance on ...9th June was considered rather rash, ...hen the A. D. C. advertisement first ...peared. But the event justified their ...fidence in their Star. The evening ...as pleasantly cool, and the ventilation of ...e theatre so perfect that, even by the ...ans, fans were hardly called in requisi... The house was well filled through..., and the frequent laughter and ap...use testified that the audience were well ...ased with the entertainment.

Determined apparently to close the sea...n with éclat, the amateurs had set down ...ree pieces on the programme. The first ...as the Farce "Ici on Parle Français."—Mr. ...riggins *(Mr. Drinkwater)* has conceived ...e brilliant idea of letting lodgings to ...distinguished foreigners "who don't know ...sovereign from a franc," by the simple ...evice of putting a placard in the window, ...th "Ici on Parle Français" at the ...t; Mr. Spriggins meanwhile setting ...mself to acquire a knowledge of French ...from one of the many systems we see ...dvertised for acquiring a language by ...eam—in order that the lodgers may be ...atified and seduced by hearing their own ...ngue. His knowledge is soon put to ...test by the arrival, under the escort of ...ctor Dubois *(Mr. Griffin)*, of Mrs. Rat..., whose husband has lost the train ...hile trying to get "three Bath buns ...d a sherry and soda" at a refreshment ...om. The lady engages apartments; and ...r. Dubois is leaving when he sees enter ...iss Spriggins *(Miss Wardna Dualtiam)* ...th whom he has fallen in love in Paris, ...d to discover whom is the object of ...s journey to England. Seizing the ...portunity, he forthwith engages a room ...o; and Mr. Spriggins is in ecstacy at ...aving secured an addition of seven guineas ...week to his limited income. His joy, ...wever, is short-lived. The maid-of-all-...rk *(Miss Britannia Mettle)* first strikes ...r double wages in view of the extra work ...rown upon her, leaving Mr. Spriggins ...d his wife to attend to the household ...ties; and next bursts in Major Rattan ...Mr. Honeycomb), in an access of jealous ...ry, in search of his wife and the young ...renchman whom he accuses of having ...ped together. An amusing scene fol..., affording opportunity for some good ...ting by the three gentlemen. Eventually ...e major discovers that his suspicions are ...d-founded; that Miss Spriggins is the real ...bject of Dubois' attentions; and all ends ...appily.

Our old friends Mr. Drinkwater, Mr. Will Honeycomb, and Mr. Griffin sus...ained their parts admirably; the first ...inging down the house with a de...laration that he was a "Free born and ...egistered British subject, and was not ...ware of any Order in Council that could ...ompel him" to produce his lodgers for Major Rattan's inspection, when the latter furiously required this opportunity of discovering his wife. The slightly seedy, slightly sour, and altogether passée Mrs. Spriggins could not have been better rendered than by *Miss Phosphor*. Her disgust that she, a remote connexion of the noble family of the Pentonvilles, should be reduced to boiling coffee and lacing stays for lodgers, was especially well assumed. The other three ladies were less at home in their novel costume, and somewhat hampered thereby in their acting. Notably, Miss Spriggins' reception of Victor Dubois' passionate advances would have been chilling in real life. Miss Dualtiam however makes up well as a lady, and practice will no doubt enable her to act the part with greater ease. *Miss Brisof* was more at home as Mrs. Rattan, but still rather lacked life. Anna Maria was an amusing and very buxom maid-of-all work, but a little schoolboyish in her conception of servant-gal demeanour.

The second piece was one of those rattling comediettas that always please, if racily acted; Mr. Hugh de Brass *(Mr. Smallweed)* wakes up one morning in an easy chair, in a drawing-room unknown, having been persuaded by a friend to accompany him to a ball the previous night, after six bottles of burgundy, and forgotten all details. The piece hinges upon the "Regular Fix" in which he finds himself. Having very little beyond expectations, he lives in chronic fear of bailiffs; and sees from the window that one has actually traced him to his present shelter, and is glued to a lamp post opposite the door. All his faculties therefore are concentrated on the problem how to remain where he is; and the dodges to which he resorts for this purpose are most amusing. The first difficulty is to find out where he is; and in a series of interviews with the maidservant, the housekeeper, and Emily (the young lady of the house), who come dropping in one after another to the room, he eventually discovers that the householder is Mr. Surplus, an old lawyer, who has a wife given to flirtation, and a nephew (Charles) of rather fast proclivity. Bye-and-bye the clerk *(Mr. Robin)* comes in, but is fluffed off by De Brass's audacity; then Mr. Charles Surplus, whose attention is diverted by De Brass's statement that he saw the clerk making love to Emily. The two go off in a rage to fight a duel, and De Brass breathes again. His resources are most severely taxed in an interview with Mr. Surplus *(Mr. St. Aubyn)*, who assumes that he is a client and requests him to state his case. Not having the least idea what to say, he commences a history having its origin "amidst the gathering clouds that surrounded political matters in the reign of George the 2nd. Requested to be more precise, he affirms that he had three brothers, John the first, James the last, and Jeremiah in the middle; and bothers Mr. Surplus for ten minutes by requesting him particularly to remember the order of these brothers,—whose names he inverts at every repetition. At last, the old gentleman shows him the door; when in rush the Clerk *(Mr. Robin)* and the nephew *(Mr. Nautilus)*, coming back from their duel. They have discovered that neither of them ever knew him, and insist on an explanation. Driven to his wits' end, he affirms himself to be the father of Emily, over whose parentage some mystery has hung. But this forces Mr. Surplus, senior, to claim for himself that relationship, which he had hitherto disguised; and matters are at a crisis when a Sheriff's Officer *(Mr. Isaacs)* comes in with the news that De Brass's cousin is dead, and has left him heir to a baronetcy and £7000 a year.

The burden of the piece falls on *Mr. Smallweed*, who rattled though his part with unflagging verve and humour. *Mr. St. Aubyn* was also good as the old lawyer; tottering however, it appeared to us, a little more than his apparent age warranted. He played up capitally to De Brass in the rather difficult legal interview, and generally sustained the part well. The other characters had comparatively lighter parts. *Miss Britannia Mettle's* elderly housekeeper was a decided improvement over the maid-of-all-work in the previous piece; she was quiet and natural. *Miss Castor* made a charming Emily. *Miss Phosphor* always acts elderly ladies well, and did so in the present instance; she is always Miss Phosphor, but she throws herself thoroughly into her parts, and made an amusing Mrs. Surplus.

The burlesque talent of the Corps, both literary and dramatic, was exhausted on the last piece—"Villikins and his Dinah." Every one is familiar with the touching history and tragic end of these lovers, and with the harshness of the "stern parient" who drives them to despair. The suitor "both gallant and gay," preferred by the latter to Villikins, was personated by Baron Boski Bumble (Mr. *Doolittle.*) The various scenes were really only a series of pegs on which to hang local hits. The bare outline of the play was preserved, but the actors sang songs and made speeches by turn, satirising every body, and act, and institution in the place. From the French Riot to Strawberries, and from Auction Sales of Piece Goods to Biodoron, no person or incident that has been lately before the public, escaped.

The recent thefts of flowers from the Public Garden were capitally sketched by Dinah, in a parody on "Fading Away," ending—

Rose of the Garden blushing and gay—
Even while we watch thee, stolen away;

and a song about the unhappy case which is being dragged through the Supreme Court, brought down the house.

I.

Come listen for a moment to my story for the million,
The Cricket Club they thought they'd like to build their pavilion,
The Race Club they steps in—says they—this thing you really shan't, sirs,
And we intend to prove to you as how you really can't, sirs,
No, no, no; should not we like to catch you at it, No, no, no.

II.

The Recreation Fund Trustees, they say this cannot be, sirs,
What right you have to interfere we really cannot see, sirs,
One thing we beg to say to you, and take it for our answers,
You say the Cricket Club cannot do—what we say that they can, sirs,
No, no, no; don't you think to catch us that way; no, no, no.

III.

Let's hope the public will step in and stop this little row, sirs,
It never will be done at all, if it is not done now, sirs,
To lawyers they will pay away the Recreation Fund, sirs,
And p'raps some one will claim our little garden on the Bund, sirs.
No, no, no.—Not at least if we can help it; no, no, no.

Determined to die rather than marry the Baron, Dinah at last poisons herself with a large bottle of "Biodoron," and is imitated by the others, who die apparently all in excruciating torment. This brought matters to a deadlock, and the Stage Manager was apologising for the fix in which they found themselves, when a gentleman ran in to announce that "Vanek was coming." That relieved the difficulty. Professor Vanek, or his personator, revived the corpses by a few passes of his wand; and the father, influenced by a horrible recollection of the scene he has witnessed, gives Dinah to her Villikins.

The father, Mr. Grumbleton Gruffin, was admirably portrayed by *Mr. Will Honeycomb*, who acted and sung with zest and spirit. *Miss Drinkwater*, as Dinah, added another to her long list of triumphs; unimpeachable in make-up, careful in gesture, and full as usual of humour, she charmed every one. *Miss Elliot*, as Villikins, acted, perhaps too consciously, and seemed a little imperfect at the outset. But when we mention that she only undertook the part four days before the performance, it will be conceded that she deserves great credit

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for the way she carried it through. Her admirable singing especially contributed much to the general success. The Baron's part, which was less severe, was gone through with humour. If it be not ungracious to mark a fault in a piece with which much trouble had been evidently taken, we should say it was rather too elaborate. The death scene threatened several times to drag, from its length, though it was saved by the number of local hits and witticisms that were in every actor's mouth. The orchestra played several excellent pieces during the intervals, and very kindly accompanied the songs in the last piece.

It only remains for us to congratulate the A. D. C. on the success of their first season in the new theatre, and to thank them for the amusement they have afforded us during the year.

RIFLE SHOOTING.

The Matches between Hongkong, Yokohama and Shanghai.

These matches have now been concluded, but the details of the shooting are so voluminous that we do not give them in full; contenting ourselves with registering those scores which have been selected as the best of each competitor.

Yokohama did not accept the challenge to the second match, that with Military Rifles, as their team do not possess such weapons, and the time allowed was too short for them to procure and get into practice with them.

The scores made by the Hongkong team compare rather poorly with those made by Shanghai; but some allowance has to be made for the inferiority of their weapons. Messrs. Woodin and Bernhard having shot with Sniders, and the other four with Swiss Military Rifles. They have another chance to improve these the scores, but it seems likely that this, like the "Any Rifle Match," will go to the team possessing the best weapons. The scores are:—

	200 yds.	400 yds.	500 yds.	Total.
Mr. C. W. Siegfried	30	28	30	88
,, R. Bernhard	22	29	23	74
,, F. Heckmeyer	28	23	21	72
,, H. B. Meyer	33	22	15	70
,, E. L. Woodin	34	23	17	74
,, J. Keiser	26	29	11	66
	173	154	117	441

Average points per shot 7.45

It may be remembered that the scores of Shanghai were:—

1st Series 535
2nd ,, ... 552
Selected scores 562

In the match with Any Rifle, there has been some very fine shooting both for Hongkong and Yokohama, and as will be seen the former port wins by a very narrow majority. As was anticipated, Shanghai stood no chance whatever in this contest, partly from the unfavourable nature of our Rifle Range, but chiefly from the want of good Match Rifles. Virtually, Shanghai has competed with Military against Match Rifles, Private Glass' or Metford's being the only rifle in the team which was provided with match-sights and wind-gauge. It is fair to point out that Bois and Wyatt shot on a day's notice, in order to finish the match, two of the men being sick, and as they had only Military Rifles, their scores are very creditable.

The Umpire for Hongkong and Yokohama was the Rev. Clark, Esq.: For Shanghai Lieut. Sim.

Before another challenge is accepted for such a contest, we hope to see some more general interest taken in shooting with fine Rifles. This can only be done by some revival of the Rifle Club, for so long as no competitions here are open to Any Rifle, men will not get expensive match Rifles costing from Tls. 100 to 150, but will prefer to practice with the Henry-Martini's of the S.V.C., which have certainly proved themselves first-rate weapons of their class.

MATCH No. 1.—ANY RIFLE.—10 shots at each Range. Maximum Poss. Score 1,200.

Hongkong Rifle Association.

	Rifle.	600 yds.	500 yds.	400 yds.	300 yds.	200 yds.	Total.
Mr. E. L. Woodin	Metford	40	37	34	37	42	190
,, L. Cameron	Henry	37	36	32	35	39	179
,, J. E. Young	Metford	37	33	35	37	30	172
,, J. Reid	Whitworth	37	34	30	32	35	168
,, J. W. Bois	,,	37	34	29	29	25	154
,, J. Noble	,,	39	32	21	20	21	133
,, A. Smith	,,	33	32	18	18	12	113
		223	211	180	185	204	1,109

Yokohama Rifle Association.

	Rifle.	600 yds.	500 yds.	400 yds.	300 yds.	200 yds.	Total.
Mr. Cowling	Metford	37	34	24	36	37	168
,, Duncan	,,	37	35	36	36	39	183
,, Barnard	Whitworth	37	33	32	34	36	172
,, Dalliston	Metford	37	34	34	36	39	180
,, Benson	Whitworth	37	34	30	32	36	169
,, Vivanti	,,	39	37	35	35	39	185
		223	211	191	209	226	1,060

Shanghai Volunteer Corps.

	Rifle.	600 yds.	500 yds.	400 yds.	300 yds.	200 yds.	Total.
Private Denman	Whitworth	37	34	24	36	37	168
,, Glass	Metford	33	36	33	36	35	173
Capt. Tucker	Military Henri-Martini	39	35	34	35	36	179
Private Wyatt, Sabatini for Captain Tucker, sick	,,	39	35	34	34	34	176
Private Carnie	Greener Military Henri-Martini	36	29	31	37	36	169
,, Ball	,,	29	24	24	31	33	141
		213	193	180	209	211	1,006

Average Points per Shot: Hongkong 3.32, Yokohama 3.24, Shanghai 2.83

Miscellaneous.

THE WAR IN FORMOSA.

Langkiaou, 21st May, 1874.

Langkiaou, where the Japanese are encamped, is a small plain one or two square miles in extent and surrounded by hills, on the West Coast of Formosa, about ten miles from the South Cape, and forty miles from Takow. There are a few Chinese villages in it. Communication with the North is generally by junk, as the path through the hills is not safe from attack.

The Japanese have lately been busily occupied in changing the position of their camp. The old one was on an open level plain that answered capitally till the rain began to fall, when the unfortunate soldiers found themselves sleeping literally in water. The new camp is on a line of sand hills nearer the shore, and less regular, but far more healthy and comfortable. In spite of the work and the rain, a few small parties have managed to get away into the bush try their breech-loaders on the savages. Two or three men have thus fallen on both sides. On one occasion such a large party of savages jumped out upon six Japanese that they had to run, leaving one of their number on the ground. His head now decorates some savage hut. Let us hope that it will be the only trophy of the kind that the savages will gain in the war. The tribe against whom proceedings are carried on are supposed to be the actual murderers of the Lewchewans, and are called the Bawtan, or the "peony," savages.

There are two American officers here, Commodore Cassell and Colonel Wason. Such at least is the rank which they bear while serving the Japanese. They seem to have had hitherto, in an unofficial way, the general direction of the expedition; and, unless they belie their reputation, they will do good service in the war. These two gentlemen the other day went unattended by an escort to a neighbouring savage village, to see the chief. It had been agreed that they should meet in the open country; but the savages not appearing, the officers went on to the village. This was an act requiring more nerve and real courage than some dashing exploit on the battlefield. A peaceable arrangement was made, which included all the villages South of Langkiaou, except one which is to be punished for some act of hostility.

22nd May.

This morning early, the later sleepers among us were awakened by a salute of several guns. This announced the arrival of General Saigo, the Commander-in-chief of the expedition. He came in the *Iwate*, which also brought 1,200 troops. A Japanese gunboat came in at the same time, and an hour or two afterwards the *Shaftesbury*, with 600 soldiers, raising the number to about 2,500. 3,000 are expected in all. The *Iwate* is said to have been bought standing, with her fittings and stores, and apparently officers as well; for they are all on board, though a new captain commands her. A fine Chinese corvette, the *Yang Woo*, and a small gunboat, have also come in, bringing three Chinese Mandarins from Taiwanfoo to visit the Japanese Commander-in-chief. With the four Japanese vessels and H. M. S. *Hornet*, which have been here for some days, there are, therefore, ten steamers anchored together in the bay.

A small party of troops bivouacked last night in the mountains, about four miles away. Early this afternoon two men were seen coming in wounded. At the same time about one hundred men hurried off to take part in the fighting. They were in irregular detachments, apparently without any officers. They went along at a half run, as eager and delighted as possible.

of them were carrying their two-handed swords as well as rifles. The latter are awkward enough for scrambling through the bush; but the Japanese cannot bear to leave them behind, hoping every sometime or other they may come up with the savages. If they do, there will be useful work. It is a common sight to see men employing their leisure moments in sharpening and resharpening their sabres and fixed bayonets. They think breech-loaders are excellent weapons for fighting at a distance, but they have a most bloodthirsty longing for hand-to-hand work.

23rd May.

We hear this morning that the result of yesterday's fight was fifteen savages and one Japanese killed on the spot. A visit to the hospital showed ten wounded men (one of one, and perhaps two, mortally). The Japanese brought in all their men who were killed, and cut off and carried back the heads of the savages, which however were immediately buried. One of the savages killed was a chief, and in his pouch was found a quantity of percussion caps, but he was fighting with a flintlock. The work was severe. The Japanese generally waited under cover, then rushing up suddenly and firing first, and then running away to take up a fresh position. In one place, a slight stockade was thrown across a ravine, and a stand was made there. The Japanese are extremely brave. The only fault to be found with them is that they are too regardless of their own lives, preferring to rush in rather than to adopt the savage tactics, and make the most of the cover.

The Chinese inhabitants are both delighted and astonished at this slaughter of their enemies. They are on excellent terms with the Japanese, who, with equal justice and wisdom, pay well for everything they want. The Chinese do not well understand the big copper coins, but thoroughly appreciate the new silver money.

The Chinese Mandarins came on shore on Friday at noon, to see the Commander-in-chief. They were received by a guard of honour of two hundred soldiers. The visit was very short. It is not known what passed. The Mandarins were not of sufficiently high rank for the Japanese to be willing to discuss anything of importance with them; and probably not much took place beyond an interchange of compliments.

We are having a sample of Formosa weather. In the morning, though the sea was quiet, still there was surf which rendered care necessary in landing. This afternoon, in an incredibly short space of time, such a sea has got up that the two small gunboats are rolling almost gunwale under, and communication between the shore and the ships is a matter of real difficulty. Cloudy weather, with a mixture of drizzling rain and heavy downpour, tender fever and ague a too probable contingency.

The Japanese commanders do not want to have any more fighting for two or three days, fearing to frighten the enemy away. They wish to wait till they can attack from their quarters at once, and so have a chance of preventing the escape of the savages.

In addition to the above particulars regarding the Japanese Expedition to Formosa, which we take from the *Daily Press* correspondence, we may give a few scraps of information which have come to hand at Keelung. The expedition was evidently received with intelligence. A fleet of small Chinese junks, eight in number, the property of a Mexican who employs them in trading between the north-east of Formosa and the Pescadores, were chartered by the Japanese for coasting close in shore, from Saso on the East Coast down to Kalang Bay. This part of the enterprise has for its object the acquisition of information from the natives, among whom presents of clothing and other useful articles are distributed. A considerable force has effected a landing on the East coast, about 30 miles above Kwaliang, their place of rendezvous. Soon the Japanese will have overflowed every accessible point inhabited by the savages, and as they are making vocabularies of the native dialects and pushing investigations almost in the spirit of savans, they will doubtless make discoveries which will prove of general value. In the Chinese portions of the island the enterprise is reported to be regarded with favor.

The following despatches have passed between the Japanese General and the Viceroy of Fohkien.

The Japanese General to Li, Viceroy of Fokien.

The savages in Formosa have long had a bloodthirsty reputation and set at defiance the orders of your Government. They are delighted when any shipwreck occurs on their Coast. Our people have for years, when they happened to be driven on the Coast by stress of weather, been slaughtered or pillaged of everything. If they did happen to escape death, and got away into Chinese territory, they have been well cared for by the Chinese officials, and for this our Government is very grateful. But how can our paternal Government stand by and see these savages still go on murdering and injuring our people? It is for this reason that I have been sent to enter the savage territory and invite conferences with the Chiefs, in order to procure the punishment of the notorious offenders and induce these barbarians to reform their practices. This is the sole object for which our vessels are present in Chinese waters, and no opposition must be offered. We will land direct on savage territory. Fearing that popular rumour may ascribe our presence to other motives, I write this for your information.

In a postcript, he quotes two cases, in one of which 52 Lewchewans were murdered, as those that he has specially come to require redress for. Although he has soldiers with him he does not mean to assume the offensive unless he is attacked, in which case he must fight. He then continues: There are Chinese and foreign merchants trading at the open ports of Formosa, and I am afraid that they may be disposed, seeing the steps that Japan is taking, to enter into relations with the savages and supply them with the necessaries of war. Such things will not be permitted, and any one attempting it will be arrested. I therefore expect Y. E. to issue a Proclamation throughout all the districts and coasts of the Island, warning all merchants, Chinese or foreign, not to offend in this respect. I also expect that, in the event of any savages, pursued by my soldiers, escaping to the districts presided over by your officials, you will direct the latter to hand them over to my soldiers at once.

Reply by the Viceroy of Fokien.

In reply to your despatch, I have to state that the whole of Formosa has for a long time been under Chinese jurisdiction. Of the aborigines some are savage some civilized, but all alike live on the Emperor's soil and have done so for 200 years. Other provinces, as Kwangsi, Hunan, Yunnan and Kweichow, have their aborigines, and these places are called the wild and lawless parts of China. Although the aborigines, living in the recesses of the hills, are monkey-like and do not understand the teachings of civilization, or are by chance beyond the reach of the orders of Government, nevertheless, inasmuch as they live on Chinese territory, they are under Chinese jurisdiction.

International Law lays down that all persons or things, moveable or immoveable, being actually within the territory of any State, are subject to the municipal laws of that State, whether such persons or things were born or produced there or were introduced from abroad; and further, Vattel says that whatever is within a dependency of a State is on the same footing as the land in the State itself. It is also laid down that when once new territory has been acquired, whether by discovery or conquest, and other nations have acknowledged the fact, all parties resident in such territory, although ignorant of what had taken place, become amenable to the new jurisdiction, and other nations cannot claim to exercise any authority over them; also, that every State is master of its own affairs and is responsible for its own faults. That being so, and Formosa being part of Chinese territory, it follows that China alone has the right to punish these savages. With regard to what you allege as the reason for the expedition, viz. that your sailors have been murdered by these savages, such acts are punishable by Chinese law by death; but the soil being Chinese territory, it is for the Chinese Government alone to take action. Your Government, in not discussing this matter with the Tsung-li Yamen, but taking the hasty measure, instead, of sending an armed force, is guilty of a breach of International Law, and also of the 1st and 3rd Arts. of the Treaty concluded two years ago.

The writer proceeds to remark upon some inconsistencies in the letter under acknowledgement, and asserts that he has already taken steps to prevent a recurrence of the atrocities, and continues:—Lewchew is part of the old Kingdom of Chung-shan, a dependency of China, which has for centuries been established there and has always been respectful and obedient to China. I make no distinction between the people of such dependencies and Chinese people, and therefore I have instructed the local officials of Formosa to require the rendition of the murderers and to see justice executed upon these. But Formosa is Chinese soil, and it is for China to take steps and not for your Government. All the Foreign Envoys at Peking will, I am certain, bear me out in this.

THE STORM ON SUNDAY.

We regret to learn that the thunderstorm on Sunday afternoon was attended with loss of life on the river, besides considerable damage on shore. The hurricane appears to have spent most of its fury in Hongkew; in fact, beyond a little nominal damage in the other Settlements, there are no traces of its effects. During the whole of the forenoon the sun was obscured; but the air, nevertheless, remained at the high temperature which prevailed during the end of the week. At noon the sun broke forth, attended with an almost intolerable heat, but shortly after two o'clock a heavy bank of clouds rolled across the sky, and a tremendous shower of rain and hail fell. The rain had hardly commenced before the gale assumed somewhat the characteristics of a typhoon; the river, which during the morning had been comparatively smooth, quickly presented the appearance of a choppy sea, and the rain fell in such torrents as at times to render Pootung invisible from the opposite shore. The storm had not long continued before a large matshed, standing on the C. S. N. Co.'s wharf, measuring 150 feet by 60, and supported on thick bamboos driven about two feet into the ground, was carried clean away, leaving exposed to the weather a large number of bales of cotton, a quantity of mango wood, &c. About the same time, a cabin in Broadway, nearly opposite the S. and H. Wharf, and owned we believe by a Chinaman, was blown down, burying the vehicles underneath in a mass of debris. The lantern with a part of the frame-work of a lamp-post, not twenty

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feet distant, was likewise carried away. During the commencement of the squall a small yacht, the *Annie*, on board of which were the carpenter of the *Thermopylæ* and Mr. Penning ship-keeper of the steam-tug *Fairy*, capsized and sank opposite the Ningpo Wharf, in midchannel. The yacht, we believe, had only left the moorings about two or three minutes when the casualty took place; and so sudden was the occurrence that the officers and crew of an American schooner close by did not notice it. It was observed from the Harbour-master's hulk however, 200 yards off; and Mr. Deighton-Brayaher hastened to the spot, arriving too late to find any trace of the unfortunate men. Precautions were then taken to mark the obstruction caused by the yacht till it could be removed. On the arrival of the *Queen* yesterday morning, application was made for the diver; and by noon the yacht, the mast of which had remained above water, was raised to the surface, and moored alongside the pilot-boat *Ruby*. The craft is not more than twenty-five feet long and seven broad, and is built after the cutter model. It was found that the sails had been literally cut off from the ropes by the strength of the wind or current, not a vestige remaining. No bodies were found entangled among the cordage, and so it is thought only the two men named were on board at the time she went down. Some Chinese boatmen whom, it is said, the men invited to accompany them, refused to go. There were thought to be grounds for supposing that a second boat accident, even more unfortunate than that detailed, had occurred. On Sunday, three engineers engaged a boat of Mr. Meincke, the proprietor of the North-German Home, French Concession, and started from a wharf on the French Bund, at 1.30 p.m., intending to go aboard the Chinese frigate lying at Woosung. They were observed proceeding down the river, and as nothing was heard of them next morning, fears were entertained for their safety. We are glad to learn however that they got back yesterday afternoon, having experienced no worse mishap than being driven past Woosung.

The only damage committed by the lightning, of which we have been informed, was to a Chinese house near Mr. Fenning's, Hongkew. The roof was torn up in several places, causing much alarm to the inmates and to those of the neighbouring houses. The fluid afterwards descended to Mr. Fenning's garden, causing considerable damage to the trees and vegetation. Between Farnham & Co.'s and Gibb's Wharf, no less than eight trees were blown down. We have not heard of any damage arising from the storm at night.

Law Reports.

H. B. M. SUPREME COURT.

Shanghai, June 10.

Before Sir E. Hornby, *Chief Judge*.

THE STEWARDS OF THE SHANGHAI RACE CLUB *v.* THE SHANGHAI CRICKET CLUB.

(On adjournment from 4th instant.)

For Plaintiffs—Mr. E. E. Wainewright.
For Defendants—Mr. W. V. Drummond.

Mr. Drummond said he had already placed before his Lordship the greater part of the facts which bore upon the position of the defence in this case. There was one little matter to which he wished to refer. He found that he had made a slight error in using one word instead of another, and it might make some difference to (although it had no practical bearing upon) the correctness of the case. He was reported to have said, by the report—(and as it was very correctly reported he had no doubt he had)—that he had made use of the words "Cricket Club" instead of "Cricket ground," he by this mistake, having attributed the growth of the Recreation Fund to the surplus funds of the Cricket Club. It ought to have been to the Cricket ground, the distinction being that the Cricket Club was only one of the different societies who clubbed together and purchased a piece of ground for recreation purposes, and it was by the sale of this ground that the foundation of the Recreation Fund was laid.

Mr. Wainewright produced the original subscription list, which was headed "Recreation Fund," and dated 24th July, 1861.

Mr. Drummond asked if this document was in Mr. Wainewright's possession.

Mr. Wainewright said it was found the other day amongst some papers, where it ought not to have been. Mr. Hogg found it quite accidentally.

His Lordship remarked that it had been before him on several other occasions.

Mr. Drummond believed that otherwise nearly all the facts had been set out in the old petition which had been presented to his Lordship, with a variety of other documents and affidavits. He mentioned this because his Lordship said the facts of the case brought before him the other day were totally at variance with those brought to his notice when that former application was made. This should be cleared up to his Lordship's satisfaction, because it very much affected the matter if not on strictly legal, at any rate from other points of view. The facts he had foreshadowed, and what he had stated previously, were the basis of the defendants' case. Substantially there were three grounds upon which he relied; the first being the question of the so-called bond, which affected the value and the exact position of the different parties; the second, that the possession of the thirty *mow* was entirely distinct from the rest of the property. The third, the letters bearing upon the agreement or raising one supposing the other grounds to be non-existent. He had prepared a list of questions which he would read to his Lordship now, because when he came to sum up the evidence, he should refer to them; as they were questions which his Lordship would necessarily take into consideration and answer in one way or the other in coming to a judgment in the case. They were as follows:—

1.—Who are the parties and what jurisdiction has the Court in the matter?

2.—What the Chinese document amounts to?

3.—The purpose for which it was obtained?

4.—30 mow of this land having been subsequently purchased by the Race Club, whether the Chinese document was not thereby merged qua the 30 mow.

5.—Whether the Recreation Fund did not buy the 30 mow from the Race Club free from conditions, and what evidence is there of any condition as to building in the agreement for sale by Race Club to Recreation Fund of 30 mow?

6.—Whether the 30 mow does not include a large portion of the Cricket Ground, and if so, whether it is proved that it does not include the site of the Cricket Pavilion?

7.—Whether the 430 mow was purchased by Race Club (or Race Course Shareholders) or by the Recreation Fund from the Chinese owners?

8.—If by the Race Club, whether the Chinese document was not merged, and whether any new agreement or condition was made between Race Club and Recreation Fund?

9.—If by the Recreation Fund, whether the Race Club did not know of, and agree to the terms and conditions of the sale, and whether the condition as to the Tls. 125 per *mow* was not the only condition?

10.—Whether any agreement was made by the letters between Cricket Club and Race Club, binding at law or in equity, and if so what was the consideration received by the Cricket Club?

He presumed he should have the usual right of summing up the evidence, and he therefore did not propose to enter into it beforehand, but would merely refer briefly to the law so far as it touched the case. The authorities which had been cited by his learned friend were all very valuable, and covered a great deal of sound law, no doubt analagous to the present case, and he did not intend to impugn one of them for the statements contained in them. He would only point out one or two things in regard to them to which he attached a somewhat different significance. In the first place he did not know if his friend relied upon this bond, as it was called, being a covenant running with the land. If he did not, it was not necessary for him to say anything further upon that point.

Mr. Wainewright said he alleged that it was in the nature of a covenant running with the land.

His Lordship.—You do not, I presume, say that it is a covenant upon which an action at law could be sustained.

Mr. Wainewright.—I beg your pardon your Lordship. I misunderstood my friend. I do not allege that it is a covenant running with the land, but an agreement binding in equity upon the holders of the land.

His Lordship.—Not as much a covenant running with the land as an equity attaching to it. I think you may put aside all question about its being a covenant sustainable in an action at law.

Mr. Drummond.—If it is not contended that the covenant runs with the land, then, of course, that removes my duty of saying anything upon it, or of alluding to a variety of cases, which bear upon the question of covenants running with the land. The case of *Tulk v. Moxhay* had been referred to by his learned friend, and was one of his chief cases, and no doubt it ran through the judgments in all the subsequent cases. It was a very complete case in itself, and it was something a novel doctrine when it was tried. But he contended, and proceeded to point out, that the facts of that and the present case, though very analogous on the face of them, were different, assuming that the Chinese document was a good binding agreement. In the one case the person who bought the land paid a less price for it in consequence of its being burdened with a restriction which took away a considerable portion of its value. In this case it was a grant by the Chinese owners of a limited right in this property and nothing more. They did not convey the property to the Race Club, and it appeared to him to be really a grant of an easement. He did not know whether any precedent could be found for strictly calling this an easement, but it was no doubt nearer to that than to anything else. The term was used in the latest case in the Privy Council as synonymous with a grant made in a case in Canada, and if taken in this light that the Race Club paid $866 for the right of view over the property, that was a limitation of the property itself. It might be said it was a right appurtenant to the property which would have followed it into anyone's hands. He thought now he had shewn the facts of the two cases to be very different, there was no pretence here that this land itself was parted with, and that it was placed under the disability to build or to do anything else, and that in consequence of this a lower price was accepted for it. It was agreed that there was a separate substantial, agreement or covenant binding this land in the hands of the then owners, and attaching to it in the hands of any subsequent assignees of the property having notice of that restriction. It was necessary to analyse the two cases and see how far they accorded, and also to see if there was any difference between them, so as to deprive the authority quoted of its value. With regard to the other cases, he need not object to any one of them as being unsound in law; although he need not go far to distinguish the difference between them. The case *Hart v. Wilson* clearly shewed that it was not a covenant running with the land, so that it was not necessary to refer to it any further. After briefly alluding to another case, cited by plaintiffs' counsel, and which he held to be exactly the same as the case *Tulk v. Moxhay*, and reading a part of the judgment therein, Mr. Drummond referred the Court to the question of easements as defined in *Gale on Easements*, page 133, and in *Woodfall*, page 281, 9th ed., where it was more briefly expressed in the term merger. He thought he should succeed in proving that having originally purchased a small part of this property the Race Club subsequently purchased the whole of it, and upon its coming into their possession the right which they previously acquired merged into the larger estate and was at once lost. With regard to the prescription, he would only refer the Court to 3, William 6th, Cap. 71, where it was fully set out that nothing less than 20 years of continual user would establish a right by prescription. That was certainly not the

burdened with the obligation which the assignors assumed.

Mr. Drummond—I say it is a question of Chinese law, upon a Chinese document executed by Chinese vendors, and only experts can give us the information we must have.

Witness—All that I can say is, that there is nothing on the face of this to bind Chinese or foreign assignees, although the document would bind the Chinese, whether it has any effect on foreigners or not.

Mr. Drummond—Mr. Medhurst being an expert, I say this opinion ought to be received.

His Lordship—But you must make out that he is an expert.

Witness, being further questioned by Mr. Drummond, said.—There is nothing on the face of this bond (for 466 *mow*) to bind the heirs or assignees, Chinese or foreign, but according to Chinese custom native heirs or assignees would be bound. Foreign heirs or assignees would be bound. It rests with his Lordship of course, but I might say the signers of the bond could very well have contemplated foreign assignees because no foreign assignee could take land unless upon a deed from the Consul.

Mr. Drummond—Would you also say whether, according to Chinese law and custom the Race Course buying this property—

His Lordship—That is for me to decide.

Mr. Drummond—I ask Mr. Medhurst because I consider him an expert in the Chinese law.

His Lordship—Make it out then that he is one.

Mr. Drummond—Very well then. How long have you been in China?

Witness—Ever since I was a boy; 22 years.

Mr. Drummond—Are you able to read Chinese correctly?

Witness—With the help of a Chinese teacher at times, sometimes without.

Mr. Drummond—You have no difficulty in reading that document? (The bond.)

Witness—Not at all.

Mr. Drummond—You can speak Chinese and understand it when it is spoken to you?

Witness—Yes.

Mr. Drummond—You are in the habit of sitting in appeal cases where Chinese are concerned,—I mean cases of appeal from the Mixed Court?

Witness.—Yes, sitting in conjunction with the Taotai.

Mr. Drummond.—For how many years have you acted in that capacity?

Witness.—There is no such system as the Mixed Court except at Shanghai, and I have been at this Consulate 6 or 7 years.

Mr. Drummond.—And during that time you have been in the habit of sitting with the Taotai, and hearing the Chinese law and customs involved in the various cases?

Witness.—Yes; by the Treaty every consul can hear mixed cases.

Mr. Drummond.—And you hear the Chinese law?

Witness.—The Chinese have always claimed that their own subjects should be tried according to the Chinese law, and I, to a certain extent, have always given some consideration to that requirement; but in all cases as far as possible I have endeavoured to decide on equity and common sense. I have not informed myself by Chinese law.

Mr. Drummond—But the Chinese law has been proved to you in all these cases?

Witness—The law has never been quoted. The Chinese lay down certain propositions according to their own ideas, and state what they are Chinese custom and law; but I never hear the Chinese quote the law as foreigners do, as they do in this Court for instance.

Mr. Drummond—How long have you been Consul in China?

Witness—Some 22 years.

Mr. Drummond, upon these facts, submitted that Mr. Medhurst's evidence was properly admissible for what it was worth.

His Lordship—Then I must rule against you. I do not wish to be offensive to Mr. Medhurst; but I say he is not an expert in Chinese law.

Mr. Drummond—I say that this is a question of Chinese law, and Mr. Medhurst is likely to know more of it than any one else in Shanghai.

His Lordship—Then I must rule against you.

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r. Henry Dent, Mr. James Hogg, and kham came to me, in consequence of nade by the authorities, I think the for an additional sum of Tls. 125 a Mr. Keswick will probably have as nowledge on the subject as myself. ame to ask my opinion, presuming, e, that as I was the chief legal y here, I could best tell how to resist m. I believe on that occasion they e a sketch of the position of e Club and Recreation Fund,—no do- were produced. The Fund was then low water, in fact non-existent, except tain moneys had been applied in a way.

RUMMOND—You mean that the funds ed up.

ORDSHIP—Yes, they simply said they ed up—did not tell me in what way; ned they had been applied in accor- ith the Trust. The gentlemen named to me to furnish reasons to enable Mr. n to resist the claim. I distinctly nd it principally bears upon this— Fund representatives said, supposing re in a condition, which they were ay this Tls. 125, or any portion which gers would be willing to accept, in get rid of the non-building contract, re under such terms with the Race t they would be no better off than re before. They would have spent nds, and still be unable to avail ves of the privilege of building which d bought up. Mr. Winchester at- hat meeting, and wrote a letter to the n, combating the Chinese view. Again, I think, the Chehsien (and this par- fixes it in my memory) was mobbed villagers; and certainly, I think, Mr. believe Mr. Dent, and certainly Mr. nd two or three other gentlemen, came gain. Mr. Wade was then superin- the publication of his work, and it t important to get his opinion of the the so-called bond. The same argu- ere used, that even supposing the id the Tls. 125, or any modification ey would be only spending the public for no good, being still bound by the ment with the Race Club. They should rmission to build so far as the Chinese ncerned, but still have the difficulty Race Club.

RUMMOND—By mention of a difficulty Race Club, am I to understand that l was produced and considered?

ORDSHIP—No; neither produced nor d—no documents were produced at e gentlemen merely said, the under- we hold with the Race Club is still upon us, and we could not build he Race Club. My impression is that 7 meeting occurred in Mr. Hogg's

ROOM thought one meeting occurred nsulate.

RUMMOND, looking at the names, re- that as far as he could discover they those of Race Club men.

ORDSHIP—They were certainly repre- es of the Recreation Fund, and they e to urge upon Mr. Wade to fight tle, on the very ground of their anding with the Race Club. The ere not mixed up in it, except so far they accompanied the others to the

RUMMOND thought the names were all belonging to the Race Club.

KESWICK believed he was at the time Trustee of the Fund and a Steward of e Club. He had a perfect recollection ifficulty that led to the bond being nd of the discussion which arose out hinese argument that there had been gement of the bond and that they itled to compensation. But his mind lank as to what his Lordship had said ard to meetings.

ORDSHIP—I think the Recreation Fund tatives were Messrs. Turing, Probst, greaves. They must have been mem- the Recreation Fund, and may also n members of the R. Club; the Race l no interest to urge because they asked to pay the Tls. 125. But I ecollect the names, I have seen so d I never took any note of them or of tings. Before I went home, I was very indeed that this interior of the Race hould be made into a botanical garden,

and Mr. Groom was kind enough to fur with estimates of what the cost wou laying it out. This was in 1869 or 18 I recollect that the whole of that sch through simply because every body that nothing would induce my brothe ards to overcome their objection to anything put there. The then Stewar it was absurd attempting anything kind, because they would never con trees being planted. There was no que building—it was that trees would gr more than three feet high. The ver ground upon which the Recreation Fu deavoured to get me to persuade Mr chester and Mr. Wade was, that they be no better off than before if they pa money to the Chinese, because they still not bein a position to build. I think to make this statement because I ignore the facts which weigh upon my

Mr. DRUMMOND—Two questions aris that; in what way can we get at wh "they" are who made the application? of course try to get evidence as to that.

His LORDSHIP—I cannot say if I re the names, Mr. Markham, Mr. Dent, and Mr. James Hogg were the first; the second time I don't rem who the gentlemen were, but I recolle Dallas coming and telling me the Chehsi been mobbed.

Mr. DALLAS remembered doing so i versation with his Lordship.

His LORDSHIP—The statement I have made relieves me to a certain extent, be I am to some extent a witness in the though not allowed to give evidence.

Mr. DRUMMOND—There is another poi your Lordship's statement which I s like to try and get to the bottom of. first point, as I have said is, who "they;" and the second, was the bond produced?

His LORDSHIP—No, no document pro at all. You said the other day there letter from me—to whom?

Mr. DRUMMOND—To Mr. Bell.

His LORDSHIP—Well, depend upon it, letter grew out of one of the meetings.

Mr. DRUMMOND produced and read letter as follows:—

MY DEAR MR. BELL.—I see an advertisemen meeting of the Recreation Fund. I wish you bring before the meeting the necessity of its com some arrangement with the Race Course Committe

You are aware that the Recreation Fund ha paid for a large portion of the Ground which they leased to the Base Ball and Cricket Clubs, and any default be made in the payment of the groun of the whole, the property of the Committee wo jeopardised, and the inner part of the Race Cou liable to be reclaimed by the original proprietors, Chinese Government. This risk the Committee properly run. I think that if the Recreation Committee were to make over to the Race Course mittee the funds it has now in hand, and also a-sig leases of the Cricket and Base Ball grounds, they be inclined to discharge the Fund and the indiv members of all responsibility, and take upon them the obligation to pay the ground rent. Pray le bring the matter under your earnest attention, as course must be speedily taken by the Committee own safety; and it would be a sad pity that any liti should be attempted. Yours very sincerely,

(Signed.) EDMUND HORN

He also read a letter from Mr. Bell to Me Groom, Probst, Hargreaves, and Tur founded on the above.

His LORDSHIP—This refers to another m ter. I was being constantly referred to.

WILLIAM KESWICK, sworn, stated—I h no recollection of the meetings or repres ations just referred to in his Lordsh statement, nor of their coming to me report or common notoriety. My mem may be defective, but I have no recollec of anything of the kind. I succeeded James Whittall as a Trustee of the Recreat Fund in 1863. I signed the Tls. 107, bond. I was not aware that the bond in by the Race Club existed; and never he of it till this case. I have never had other impression than that the only liabi attaching to the property for which I am a T tee is Tls. 125 a mow to the Chinese. I belie our liability was subject to redemption, that we could build or do anything we li if we paid the Chinese that Tls. Through the Secretary of the Fund, I made aware of this proceeding, and I as as the other Trustees was very averse being dragged into Court. We met and sidered the subject, and came to the clusion that it was our duty to defend case—to maintain the rights of our t intact. When I first heard of the diffic which arose, I addressed the following let to my co-trustees:—

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ow meeting. On being appointed
Trustee by the Court I went into
uments and concluded that the Race
I no right to claim this. I am of
nion still. In the first place I thought
ot necessary or incumbent on me to
s to the necessity for asking permis-
d that I saved trouble by asking it. I
lieved the 30 mow was part of the
since I first went into the documents
1869 or early 1870. The money had
been paid, but Mr. Dent's letter had
ritten promising to pay it. This
was the only ground on which I
o pay it. I was of opinion, however,
was Mr. Dent, that a clean title deed
t be produced, that therefore the
ould not be taken, and that the claim
t again be raised with any prospect
ess. We made a compromise with
e Club, stating the terms if they
roduce clean title deeds, because then
ld have proof that the 30 mow did
We considered that our title deeds,
ndary the Race Course ditch, covered
le interior?

ORDSHIP—How do you prove that.

ESS—If there were other boundaries
hey must be stated.

ORDSHIP—You buy 430 mow bounded
Race Course ditch, but is there any-
the title deed to show it is the whole

ESS—But otherwise there must be an
as well as external boundary.

ORDSHIP—The vice of the whole thing
fancy you bought a piece of ground,
you bought 430 mow. If you had
the whole of the interior it would be
ferent.

RUMMOND—If the boundaries stated
t, they must include everything.

ORDSHIP—430 mow you have bought
d for, and it is bounded by the Race
ditch—that is all.

RUMMOND—In the one case you have
lary stated,—in the other the extent
roperty. If the two are inconsistent
ept one and reject the other?

ORDSHIP—But they are no doubt both

RUMMOND—If the boundary is correct,
include everything within it.
Moore instanced the case of buying a
y in the settlement described as bound-
our streets.

ORDSHIP—But here you have bought
w of land, and if there is one mow
ou have not paid for it.

RUMMOND—We buy the whole in-
estimatol at 430 mow. It is a ring
roperty, and I never yet saw a deed
such a property without the whole of
erior being covered by it, unless any
ere specially excepted. It does not
the exact amount in the deed, it says
of land, bounded, &c."

ORDSHIP—It is precisely the case of
nd; each proprietor bought so many
f land bounded by the river; the river
t; and there is a long strip of land left.

ESS—I had no doubt, after examining
uments, that the title deed gave us the
the whole of the interior. We sub-
tly agreed to buy the 30 mow if we got
title deed—we knew they had a
bill of sale which, however, was dated
to our title to the 430 mow. By clean,
an absolute unlimited title. On my
nto Shanghai, in June 1864, Mr. Dent
to me to take over the ground and
m him for any expenses. I have joined
Trustee of the Fund in defending this
and feel myself compelled to take these
in common with my co-trustees, to pre-
his perpetual injunction to the injury of
perty. Mr. Purdon agrees as well as
ers. When the petition of 28th Jan.
has put in, it was served upon all the
s, and the Race Club did not then take
ps to bring forward this alleged re-
n.

re-examinol—In 1859-60, when I was
re, the old riding course was in exis-
. The idea of buying the race course
t mooted then. There must have been
on the land somewhere, but I don't
xactly where. When I returnol in Dec.
ere were no houses. It was well
that the Race Club had cleared them
but I did not know as a fact who bought
aid for the land and houses. I have a
of 14th June 1869 from Mr. Bayne ap-

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Peking
24 June 1874

No 124

My Lord,

I have the honor to forward an Extract from the North China Herald giving an account of the disposal of a serious outrage committed against an American Missionary residing in Shantung.

In my despatch to the Prince of Kung complaining of

The Right Honorable
The Earl of Derby
&c &c &c

The War in Formosa

Enclosure
No 1
in Mr Wade's
No 129

24 June
1874

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